

Syllabus

406 U. S. 356, in a badly fractured set of opinions. A four-Justice plurality, questioning whether unanimity serves an important “function” in “contemporary society,” concluded that unanimity’s costs outweighed its benefits. *Apodaca*, 406 U. S., at 410. Four dissenting Justices recognized that the Sixth Amendment requires unanimity, and that the guarantee is fully applicable against the States under the Fourteenth Amendment. The remaining Justice, Justice Powell, adopted a “dual-track” incorporation approach. He agreed that the Sixth Amendment requires unanimity but believed that the Fourteenth Amendment does not render this guarantee fully applicable against the States—even though the dual-track incorporation approach had been rejected by the Court nearly a decade earlier, see *Malloy v. Hogan*, 378 U. S. 1, 10–11. Pp. 93–95.

(c) The best Louisiana can suggest is that all of the Court’s prior statements that the Sixth Amendment *does* require unanimity are dicta. But the State offers no hint as to why the Court would walk away from those statements now and does not dispute the fact that the common law required unanimity. Instead, it argues that the Sixth Amendment’s drafting history—in particular, that the original House version’s explicit unanimity references were removed in the Senate version—reveals the framer’s intent to leave this particular feature of the common law behind. But that piece of drafting history could just as easily support the inference that the language was removed as surplusage because the right was so plainly understood to be included in the right to trial by jury. Finally, the State invites the Court to perform a cost-benefit analysis on the historic features of common law jury trials and to conclude that unanimity does not make the cut. The dangers of that approach, however, can be seen in *Apodaca*, where the plurality subjected the ancient guarantee of a unanimous jury verdict to its own functionalist assessment. Pp. 96–100.

(d) Factors traditionally considered by the Court when determining whether to preserve precedent on *stare decisis* grounds do not favor upholding *Apodaca*. See *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U. S. 230, 248. Starting with the quality of *Apodaca*’s reasoning, the plurality opinion and separate concurring opinion were gravely mistaken. And *Apodaca* sits uneasily with 120 years of preceding case law. When it comes to reliance interests, neither Louisiana nor Oregon claims anything like the prospective economic, regulatory, or social disruption litigants seeking to preserve precedent usually invoke. The fact that Louisiana and Oregon may need to retry defendants convicted of felonies by nonunanimous verdicts whose cases are still pending on direct appeal will surely impose a cost, but new rules of criminal procedure usually